



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

August 17, 2023

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202201741 (Incident Date: February 21, 2022) regarding Police Officer Jorge Flores, Tax No. 954816 (DADS No. 2023-28584)

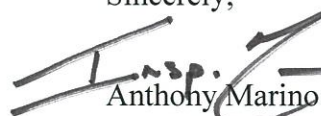
Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that the actions of Police Officer Flores do not rise to the level of actionable misconduct. Police Officer Flores faced a hostile crowd that refused to disperse and instead hurled insults at the officers and threatened to "smack the shit" out of them. The group acted disorderly by provoking and antagonizing the officers on the scene. Clearly, the crowd was exhibiting active aggression.

Police Officers are permitted to un-holster and point their CEW at potential threats to de-escalate the situation and maintain order. That is precisely what Police Officer Flores did in this instance when he pointed his CEW at aggressive individuals whose behavior was threatening the safety of Police Officer Flores and his fellow officers.

Therefore, based on the foregoing, Police Officer Flores will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Threat of Force).

Sincerely,



Anthony Marino
Inspector
Commanding Officer
Police Commissioner's Office

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